

24STCV12553 24STCV12553

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MOTION TO REQUIRE PLAINTIFF TO POST OUT OF STATE BOND

The Court tenders the following

tentative ruling in the matter Joshua Martin Pannepacker v. John Ernest Papadakis, Los Angeles County Superior Court case number 24STCV12553, set for hearing on June 26, 2026. John Ernest Papadakis (Defendant) moves for an order requiring Joshua Martin Pannepacker (Plaintiff) to post an undertaking in the amount of \$173,654.52 pursuant to Code of Civil Procedure section 1030. Plaintiff opposes the motion. The motion is denied.

A.

Legal Standard

Where a plaintiff in an action resides out of the state, the defendant may, at any time, apply to the court for an order requiring the plaintiff to file an undertaking to secure costs and attorney's fees which may be awarded in the action. (Code Civ. Proc., § 1030, subd. (a).) The motion shall be made on grounds that the plaintiff resides out of the state and there is a reasonable possibility that the moving defendant will obtain judgment in their favor. (Id., § 1030, subd. (b).) The motion shall be accompanied by an affidavit in support of the grounds for the motion and setting forth the nature and amount of costs and attorney's fees the defendant has incurred and expects to incur. (Ibid.)

"The purpose of [Section 1030] is to enable a California resident sued by an out-of-state resident to secure costs in light of the difficulty of enforcing a judgment for costs against a person

who is not within the court's jurisdiction." (Alshafie v. Lallande (2009) 171 Cal.App.4th 421, 428.) The moving party is not required to show there is no possibility that an out-of-state plaintiff will win at trial, but rather that it is reasonably possible that the moving party will win. (Baltayan v. Estate of Getemyan (2001) 90 Cal.App.4th 1427, 1432 (Baltayan).)

If the motion is granted, the plaintiff shall file the undertaking no later than 30 days after service of the court's order. (Code Civ. Proc., § 1030, subd. (d).) If plaintiff fails to file the undertaking within the time allowed, the plaintiff's action shall be dismissed as to the moving defendant. (Ibid.)

B. Discussion

Defendant moves for an order requiring Plaintiff to post an undertaking in the amount of \$173,654.52. In doing so, Defendant asserts that Plaintiff resides in Pennsylvania and that there is a reasonable probability Defendant will obtain judgment in his favor. (Mendoza Decl., Ex. F.) Plaintiff contests Defendant's motion on both grounds.

First, Defendant argues that Plaintiff resides out of state. Section 1030 requires a determination that the Plaintiff "resides out of the state." (Id., § 1030, subd. (b).) This refers to the plaintiff's actual dwelling, rather than technical legal domicile. (Myers v. Carter (1960) 178 Cal.App.2d 622, 626.) The Court's determination of residence is based on the facts at the time the motion is considered. (Ibid.)

Here, Defendant offers an alleged declaration from Plaintiff stating that he moved to Pennsylvania after filing this lawsuit on May 17, 2024. However, Exhibit F, referred to by Defendant, is Defendant's own offer to compromise pursuant to Code of Civil Procedure section 998 and includes no mention of Plaintiff's relocation. Additionally, Plaintiff offers evidence that he renewed his California driver's license in May 2026. (Barkhordar Decl. ¶ 3, Ex. A.) Plaintiff also offers testimony from his sister that he never fully recovered from his injuries and travelled to Pennsylvania to be close to family during his recovery. (Id. ¶ 4, Ex. B.) Thus, Defendant has not met its burden of demonstrating that Plaintiff resides out of the state. Accordingly, Defendant's motion is denied.

Conclusion:

The Court denies the motion without prejudice.